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Attorneys for Petitioner Take-Two Interactive Software, Inc.

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

In re DMCA Subpoena to Discord, inc.

Case No. 1:26-mc-422

ECF Case

**PETITIONER TAKE-TWO INTERACTIVE SOFTWARE, INC.’S
REQUEST TO THE CLERK FOR ISSUANCE OF
A SUBPOENA TO DISCORD, INC.**

Petitioner Take-Two Interactive Software, Inc. (“Take-Two”) through its undersigned counsel of record, hereby requests that the Clerk of this Court issue a subpoena to Discord, Inc. to identify alleged infringers at issue, pursuant to the Digital Millennium Copyright Act (“DMCA”), 17 U.S.C. § 512(h) (hereinafter the “DMCA Subpoena”). The proposed DMCA Subpoena is attached hereto as Exhibit A.

The DMCA Subpoena is directed to Discord, Inc., the service provider of a server accessed via the following invitation link: <https://discord.com/invite/XC7YPVCu9> (hereinafter the “Discord Server”). Infringing content was posted on the Discord Server, which is believed to be associated with the following Discord accounts and community servers:

- CYBERLEEK, Discord User ID 532773089466122241
- CINEMATICROCKSTAR, Discord User ID 1183522740725108736

- Surfer24k (and replacement handles cyberleek_west and surwest), Discord User ID 1517326120867991592
- <https://discord.gg/darkviperau>
- <https://discord.gg/odyssey>

This content infringes copyrights held by Take-Two for GRAND THEFT AUTO VI, proprietary software owned by Take-Two. *See* Decl. of D. Cendali ¶ 3. (hereinafter “Cendali Decl.”). The copyrighted material includes but is not limited to audiovisual content, artwork, images, dialogue, or other creative elements.

Take-Two has satisfied the requirements for issuance of a subpoena pursuant to 17 U.S.C. § 512(h), namely:

1. Take-Two has submitted a copy of the notification sent pursuant to 17 U.S.C. § 512(c)(3)(A) as **Exhibit 1** to Cendali Decl.
2. Take-Two has submitted the proposed DMCA Subpoena attached hereto as **Exhibit A** and a Proposed Order attached hereto as **Exhibit B**; and
3. Take-Two, through its counsel of record, has submitted a sworn declaration confirming that the purpose for which the DMCA subpoena is sought is to obtain the identity of an alleged infringer or infringers, and that such information will only be used for the purpose of protecting Take-Two’s rights under Title 17 U.S.C. §§ 100, *et. seq.* *See* Cendali Decl. ¶ 5.

Having complied with the statutory requirements, Take-Two respectfully requests that the Clerk expeditiously issue and sign the proposed DMCA Subpoena pursuant to 17 U.S.C. § 512(h)(4).

Dated: New York, New York
August 20, 2026

KIRKLAND & ELLIS LLP

/s/ Dale M. Cendali

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